# Montgomery County District Court

Cause No. 2024-CV-0009

Brian Williams, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

## Defendant's Original Answer

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| **Date:** | 3-9-24 |
| **Counsel for defendant:** | Stephanie Williams, Ashford & Lyle LLP |

Defendant generally denies each and every allegation contained in Plaintiff's Original Petition and demands strict proof thereof by a preponderance of the credible evidence, as required by the Texas Rules of Civil Procedure.

For furtehr answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence caused or contributed to the collision. Plaintiff failed to keep a proper lookout, failed to yield the right-of-way to oncoming traffic, and failed to control speed as a reasonably prudent driver would under the same or similar circumstances. Any recovery must be reduced in proportion to Plaintiff's percentage of responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code.

Second, the collision was proximately caused by the acts or omissions of a third party over whom Defendant had no control, and that conduct constitutes a new and independent cause of Plaintiff's alleged injuries.

Third, Plaintiff failed to mitigate damages by declining or delaying reasonable medical treatment, and any damages awarded must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.